सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ०९९
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F.No. S/3-MISC-PRO-516/2013 ACC(I) Part 7 Date: 18.03.2021

MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 26.02.2021

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) for Air Cargo Complex, Sahar, was held on 26.02.2021 at 03.30 pm and was co-chaired by Shri Vinayak Azaad, Commissioner of Customs (Import) and Shri Anantha Krishnan, Commissioner of Customs (Export/General). In view of the government advisory regarding "social distancing" and preference for eschewing avoidable movements to combat the threat of Covid-19, the meeting was conducted via Web Conference.

The following officers and representatives from the stakeholder organizations participated in the meeting:

Name & designation	**Organization**
Shri M. K. Sarangi, Addl. Commissioner (Import)	Customs, ACC, Andheri
Shri Vishal Sanap, Addl. Commissioner (Import)	Customs, ACC, Andheri
Shri K.C. Kala, Addl. Commissioner (Export)	Customs, ACC, Andheri
Shri Amit Kumar Sharma, Jt. Commissioner (General)	Customs, ACC, Andheri
Shri Sudhakar Pandey, Jt. Commissioner (Export)	Customs, ACC, Andheri
Shri Prashant Gawande, AC (Import)	Customs, ACC, Andheri
Shri Bipin Jadhav, AC (Import)	Customs, ACC, Andheri
Shri Roshan Lal, AC (Import)	Customs, ACC, Andheri
Shri Shibi Singh, AC (General)	Customs, ACC, Andheri
Shri Abhishek Chawla, ADC	Asstt. Drug Controller, ACC, Andheri
Shri Burman, Regional Director	WCCB, ACC, Andheri
Ms. Rucha, Technical Officer	FSSAI, ACC, Andheri
Shri R.G. Meena, Officer	Plant Quarantine, ACC, Andheri
Dr. Vignesh	Animal Quarantine, ACC, Andheri
Name of attendees from stakeholder organizations	**Organization**
Shri Dushyant Mulani, Shri Sanjeev Harale, Shri Ketan Desai, Shri K.Shetty, Shri Ganpat Korde, Shri Shanakar Shinde	BCBA
Shri Bala Ayer	ACAAI
Shri Manoj Singh	MIAL
Sh. Kamlesh C. Sawant, Sh. Errol D'souza	AIATSL
Shri Mark Fernandes	MSF Bombay
Shri Rishikesh	Siemens Healthcare
Shri Vasudevan, Shri Gaurav Dogar	DHL Express

Shri Jayesh Parab		MACCIA
Shri Venkatraman		DHL Logistics
Shri Newton Fernandes		All Nippon Airlines
Shri Kiran Panbude		Collector of Stamps
Shri Harish Zade		Lufthansa Cargo
Shri Zubin		Cathay Pacific
Other attendees		
Shri Paresh Shah	Shri Nandan Kanchan	Shri Anwar Khan
Shri Mangesh Mali	Shri Sorab P Engineer	Smt. Chaitaly Mehta
Shri Rajiv Desai	Shri Ashok	Shri Dayanand Kotian
Smt. Vaishali Kulkarni	Shri Abdul Gafume	Shri Paresh Sangani
Shri Prathmesh Sirambedkar	Shri Lynn Bothello	Shri Ashish Pednekar

At the outset, Commissioner of Customs (I) welcomed the members of Trade, Customs Broker Associations, Airlines Representatives, Custodian Representatives, and other stake holders present for the web-meeting.

Following agenda points were taken up:

A. OPEN POINTS FROM LAST PTFC MEETING HELD ON 28.01.2021

1. In case of multiple queries in a single BE, importers/CB are unable to see the query status of early query and reply given thereof since past 15 days. Earlier, this was visible since inception of EDI. BCBA requested to represent with DG systems to restore this query module for linking all the queries. **(Import)**

Additional Commissioner (Import) submitted that they have already sent an email regarding the same to the DG systems but no response has been received in this regard till date and it may take some time for this query to be resolved. Commissioner (Import) directed ADC, EDI to make another reference in this regard and follow up regularly & decided to keep this point open till the query is resolved.

(Point Open)
Action by : ADC, EDI

2. A. D. Code Registration (Import)
Exporters are facing challenges in AD Code registration. The online module is also facing challenges for the delay as per the feedback received. Request for streamline the AD code registration process on priority.

Commissioner (Import) informed the stakeholders that this issue has been taken up with DG systems & will be resolved accordingly.

(Point Closed)

3. Request to speed up AEO Application (Export)

Kindly speed up all the pending AEO fresh as well as renewal application especially for T2 where inspection of site is required, as the same is being delayed.

Commissioner (Export) informed the stakeholders that full-fledged AEO Cell has started working in his Commissionerate and will now onwards be responsible for all the AEO applications pertaining to ACC. Three officers have been deputed in the said cell and he is personally monitoring the pending AEO applications and assured the trade that the same will be disposed by 31.03.2021. He further informed the trade members that a meeting in this regard is scheduled to be held on 01.03.2021 by Directorate of International Customs wherein the issues of the trade specially MSME regarding AEO registration will be taken up. He further invited the BCBA, ACAAI and other stakeholders to join the meeting and provide their valuable inputs in clearing pendency of the AEO applications. He also informed that most of the pending AEO applications pertain to T-2 category which involve physical verification of the premises of the applicant and the same will be the top agenda in the meeting dated 01.03.2021 suggesting to have the physical inspection done by the local GST/Customs Commissionerates situated out of Mumbai.

(Point Closed)

4) <u>KIOSK (Touch Screens) at ACC are not functioning</u> (General/Import)

We request you to get all the KIOSK Touch screen at ACC Mumbai functional. Also few more KIOSK need to be installed which are pending to be installed.

Commissioner (General) informed the stakeholders that all the 4 KIOSKs installed at ACC are now in working condition and further informed that they are in the process of procuring another 2 KIOSKs by 31.03.2021 as requested by the trade. The stakeholders suggested to have a look at the 4 KIOSKs because as per the feedback received by them from their members, some problems are there in the KIOSKs. To this, Commissioner (General) directed JC, General to look into the matter and get the queries of the trade resolved.

(Point Closed)

5) <u>Request to re-locate and start TSK operations at New Counter at the appraising group</u> (General)

Trade requested that TSK counter should be fully operational inside the ACC premises.

Commissioner (General) informed that one officer is working from the TSK counter present in the Appraising Hall, whereas other officers are still working from the old TSK counter situated in Export Heavy Shed. This is due to the space crunch in the ACC. He further assured the trade that they will be identifying the area near appraising hall to accommodate

all the TSK officers so that the TSK will work smoothly both for the members of the trade and the customs.

(Point Open)

Action by: JC, General

6) Information on ACC Mumbai website (Import)

We appreciate the measures undertaken by Air Cargo Commissionerate for timely clearance of consignments and providing information regarding pendency to the trade and industry in order to ensure timely clearance.

In order to ensure timely clearances throughout the year (beyond TRS period also), we request that the following information be kindly made available on ACC Website to enable faster clearance.

(a) BoEs pending for duty payment
(b) BoEs pending for goods registration
(c) BoEs pending for query reply.
(d) BoEs submitted but not assessed and groupwise pendency
(e) Display of the list of the customs officers name and their link officers details with contact details i.e. Cell Number and Email ID are required on ACC website.

ADC (Import/TRS) informed that he has spoken to the officer in DG systems regarding the same and got the feedback that all this information is already there in the public domain either through the message delivered to the importer or other sources. To this, Commissioner (Import) suggested that since this information is already handy with the importer/exporter and other stakeholders, providing the same on the ACC website would not be necessary. Though as a facilitation measure this may be communicated to DG systems to have such information on all India basis available at CBIC website giving reference to this meeting and decided to close this point at this forum.

(Point Closed)

7) Delay in clearance of export consignment due to CARR message integration (Export)

For the past 2 weeks, exports are suffering considerably due to intermittently breakdown in CARR messages between Custodian and Customs regularly. In the said regards, we suggest the following

a) In depth study be carried out to resolve the issue of CARR message either with Custodian or Customs.
b) In event of the breakdown, backup mechanism be kindly worked out to process export consignments.
c) Custodians should provide waiver of demurrage charges suo-motto whenever there is breakdown.

Commissioner (Export) informed the stakeholders that he has taken up the issue with Custodian and DG systems and directed a particular Custodian where this issue is going on again and again to inform the reasons for such breakdown and assured the trade that the same will be resolved within a month. As regards to the waiver of demurrage charges suo-motto during breakdown, he suggested that since this is a commercial

matter so it is better to have separate meeting on this among Custodian, trade and customs.

(Point Closed)

8) With resumption of business after COVID 19, we kindly request that a proper cafeteria / pantry be available inside the ACC Mumbai premises which will help all the stakeholders working at ACC Mumbai. **(MIAL)**

Commissioner (Import) suggested that since the Covid cases are on rise these days, it is better to put a hold on this suggestion till Covid-19 normalises and will be dealt in near future when the Covid situation allows for the same.

(Point Closed)

B. FRESH AGENDA POINTS:

Points raised by BCBA:

1) **Operational of TSK Counter inside ACC Mumbai near appraising hall (General)**

Already discussed above.

(Point Closed)

2) **Waiver of demurrage charges for export during breakdown CARR messages (Export)**

Already discussed above.

(Point Closed)

3) **Additional KIOSK (Touch Screens) at ACC Mumbai (General/Import)**

We request you to kindly install few more KIOSK screens and ACC Mumbai for members.

Already discussed above.

(Point Closed)

4) 24 x 7 Working for RMS Consignments vide ACC PN No 48/2020 dated 21.2020 is not being operative due to Console agents and Airlines not given online Delivery Orders. All other stakeholders, such as Customs, Custodian, Custom Brokers, Transporters, Stamp duty etc. are operating to follow the endeavour of CBIC for 24 x 7 clearance of RMS facilitated consignments. **(Import)**

Suggestion: We request that for RMS facilitated deliveries, the Console Agents and Airlines should support directives of CBIC.

Commissioner (Import) suggested to take up this issue forward as it requires many deliberations with the airlines and directed ADC (Import) to discuss the same with them and find out the way forward.

(Point Open)
Action by : ADC, Import

5) **IGST Refund Week**: The initiative to extend IGST refund through the alternative mechanism is a welcome relief to the trade. **(Export)**

We request department to have a wide publicity for a better reach so as to get the desired outcome.

Commissioner (Export) informed that since there is no pendency regarding IGST refund, this shows there is a wide publicity. He further suggested if there is any other input regarding IGST refund, the same may be discussed with him in person.

(Point Closed)

6) Need the quick entry of those vehicles coming for loading import consignments from AIATSL (AIR INDIA WH). The vehicles are queued up jointly with the vehicles coming to load import consignments delivery from MIAL warehouse. Trade members have to wait for their vehicle to reach AIATSL warehouse almost for 8 hours. The volume of import deliveries at AIATSL warehouse is almost 10% comparing to MIAL Warehouse, it means vehicle coming to AIATSL is queuing 9 vehicles to enter first. To minimise waiting period for such vehicle is required to take separate entry to ACC. **(MIAL)**

Suggestion: We request the MIAL to solve this problem so the waiting period of 8 hours can be reduced.

Commissioner (Import) suggested to have a separate meeting regarding the above issue with the concerned stakeholders i.e. MIAL, Air India (AIATSL) & BCBA and resolve the issue accordingly.

(Point Closed)

7) MIAL need to augment more staff at gatepass counter for timely deliveries, particularly between 9.00 to 10.30 p.m there is hardly any staff to prepare gatepass. **(MIAL)**

Suggestion: We request MIAL to post sufficient number of staff for issuance of gatepass.

MIAL assured the stakeholders that this issue will be resolved.

(Point Closed)

8) It has been reported by our members that Custodian are keeping their gate pass counter closed between 8pm to 11 pm. The clearance of RMS Consignments are held up due to non issuance of gate pass between 8 pm and 11pm. **(MIAL)**

Suggestion: Request to the custodian to keep the gate pass counter open 24 x 7 and if required to close it may be close between 11PM and 12 PM.

Already discussed above.

(Point Closed)

9) Flight checking and providing locations to the packages are getting delayed by twelve hours plus, the custodians must update their flight handling and locations given to the packages to be displayed on screens for information. **(MIAL)**

Suggestion: We request both the custodians to install the LCD Display for information about the status of the cargo arrived and location given to packages. Also request to set up help desk to provide the information about the time and locations of the packages.

It is decided among the stakeholders i.e. BCBA, MIAL & Airlines to have a separate meeting on this issue and be resolved accordingly.

(Point Closed)

10) Any other point with permission of the chair.

11) Thereafter, the Commissioner (Import) started a discussion with the members of the PGAs regarding issues faced by the trade & need to reduce the dwell time for the consignments referred to PGAs NOC. To this, Commissioner (I) informed the Trade that he had an offline meeting with the members of PGAs a day before on high dwell time. It was informed by the PGAs that Queries raised to the importers are not replied on time, staff constraint and physical verification of the goods were some of the reasons for high dwell time.

- **Sh. Abhishek Chawla, Asst. Drug Controller (ADC), ACC wanted to know the methodology of calculating the dwell time this time as it comes out to be very high (72 hours) as compared in the past TRS exercise a year ago which was 1 hour 37 minutes for the import consignments and 40 minutes for the export consignments. Commissioner (I) directed ADC (I) to take a note of this and follow up the same with systems regarding the methodology of calculation of dwell time. Commissioner (I) further raised a query regarding not attending the BEs/SBs emailed to Asst. Drug Controller after 4 P.M for NOC. To this, Sh. Abhishek Chawla informed his office used clear all the BEs/SBs received before 4 P.M the same day before closing of the office. He further informed that his office receives emails for NOC in the night also which only can be processed the next day. BCBA appreciated the process adopted by ADC, Mumbai for giving NOC to consignments and requested to increase the bandwidth of the Asst. Drug Controller system so that the NOC can be released in ICES itself.**
- **BCBA further stated that the time taken by FSSAI is very high and requested to follow the process adopted by ADC for faster NOCs. Ms. Rucha Salelkar, Technical Officer, FSSAI informed the trade that they are following the procedures laid down by the authorities and unlike ADC they have to physically examine all the consignments and further lab reports take another 4-5 days. However FSSAI gives provisional NOCs to frozen items, items having shelf life less than 7 days, retail items etc. BCBA requested FSSAI to issue a circular regarding process to be followed, timelines adhered, for transparency and as a facilitation measure.**
- **Dr. Vighnesh, officer from Animal Quarantine & Certification Services (AQCS) informed about the staff constraint with the organisation as only 4 officers are deputed in West Zone. There are 3 inspectors, one is deputed in Mundra and another one holds the charge of Nhava Sheva**

and ACC collectively and it is difficult for one person to handle both the ports on daily basis. He further informed that recruitment is going on and it is expected to post one officer exclusively for ACC within 3-4 months.

- **Sh. R.G. Meena, officer from Regional Plant Quarantine Station, informed that the timeline for NOC depends on the type of commodity as for the fresh goods: 48 hours, plants: 1-2 days, 3 days (with fumigation), etc. To this, Commissioner (I) directed ADC(I) to explore the possibility of providing a link on ACC website regarding provisions, Do's & Don'ts and rules pertaining to PGAs as a facilitation measure for the trade.**

- **Sh. Rakesh Burman, Regional Director, WCCB, informed the members that his office is giving offline/online NOCs to 15-20 consignments per day and tries to give the same within 24 hours but as WCCB NOC involves conservation angle, CITES provisions, Wildlife Protection Act provisions, the items involved are sensitive and need for sampling is must. He further stated that after lockdown quantum of referral has reduced considerably and hence in view of the same, only one staff is deputed on alternate days (Mon-Wed-Friday) for inspection/NOC purpose at ACC. He assured that his office will give its best to reduce the dwell time.**

- **Sh. Bala Ayer, ACAAI suggested to link ADC NOC to SBs on parallel lines as done for BEs. ADC (I) noted the same for exploring the possibility with systems.**

Commissioner (Import) appreciated that this may be the most fruitful PTFC meeting as it involved all the PGAs and further requested the officers of the PGAs to continuously attend the PTFC meetings and be available at the start of the session so that the matters related to PGAs be discussed early and they need not to sit for the entire PTFC meeting.

The meeting ended with thanks to the Chair.

This is issued with the approval of Commissioner of Customs (General /Import/ Export), Mumbai Customs Zone-III.

18/03/21

(M.K. Sarangi)
Addl. Commissioner of Customs (Import)
Air Cargo Complex, Mumbai

COPY TO:

1. Chief Commissioner of Customs, Zone-III, Mumbai - For kind information, please.
2. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
3. All Addl./Jt./DC/AC Commissioner of Customs, Import / Export / General, ACC.
4. All members of PTFC meeting (via E-mail)
5. E &T Section/PSO Section for circulation in Export/General Commissionerate.
6. EDI Section- For uploading on ACC Website.
7. Asst, Drug Controller, ACC, Sahar.
8. Office copy. discussion